

1. The Application for Writ of Attachment is DENIED.
2. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: C25-02473

CASE NAME: MARGARET FERRARI VS. JAMES KLEIN

***HEARING ON MOTION IN RE: ORDER SUBSTITUTING LAURIE RENE KLEIN, SUCCESSOR IN INTEREST OF JAMES KLEIN, DECEASED, IN THE PLACE OF DECEASED DEFENDANT AND ALLOWING ACTION TO BE CONTINUED**

FILED BY: FERRARI, MARGARET

TENTATIVE RULING:

Plaintiff Margaret Ferrari ("Plaintiff") filed a Motion for Order Substituting Laurie Rene Klein, Successor in Interest of James Klein, Deceased, in the Place of Deceased Defendant and Allowing Action to be Continued Against the Successor in Interest, and Allowing the Filing of a First Supplemental Complaint on January 20, 2026 (the "Motion to Substitute Successor-in-Interest as Defendant"). The Motion to Substitute Successor-in-Interest as Defendant was set for hearing on February 23, 2025. The motion is unopposed.

Background

Plaintiff filed her Complaint on August 28, 2025 against Home Depot U.S.A., Inc. and an individual, James aka "Jimi" Klein ("Mr. Klein"). The Complaint stems from an alleged accident occurring at a Home Depot involving Plaintiff and its employee Mr. Klein.

Since the filing of the Complaint, Plaintiff has learned that Mr. Klein is deceased. See Declaration of Patrick R. Campbell filed January 20, 2026 ("Supporting Declaration"), ¶12 *et seq.*

Plaintiff seeks leave to file a supplemental complaint to allege that Mr. Klein is deceased and that Laurie Rene Klein is his successor in interest.

Analysis

Pursuant to Code of Civil Procedure section 377.40, a civil claim against a decedent must be brought against the decedent's personal representative or, **to the extent provided by statute, against the decedent's successor in interest.** See Code Civ. Proc. § 377.40 (subject to the Probate Code "... a cause of action against a decedent that survives may be asserted against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest.") (emphasis added); see also *Smith v. Cimmer* (2011) 199 Cal.App.4th 1381, 1390-1391 (any litigation must be maintained by, or against, the executor or personal representative of the estate); see also Code Civ. Proc. §§ 377.11 ("decedent's successor in interest means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.") and 377.42 ("In an action or proceeding against a decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest, on a cause of action against the decedent, all damages are recoverable that might have been recovered against the decedent had the decedent lived except damages recoverable under Section 3294 of the Civil Code or other punitive or exemplary damages.").

Plaintiff has made a proffer that it can allege that Mr. Klein is deceased and that Laurie Rene Klein is his wife and successor in interest.

While the Court is not making any final determination at this stage, Plaintiff has articulated a *prima facie* basis for the alleged liability on the part of Laurie Rene Klein that would allow a claim to be asserted against that person under Code of Civil Procedure section 377.40. Importantly, Section 377.40 allows for actions to be prosecuted against a successor in interest **“to the extent provided by statute.”**

Among other things, statutory provisions provide for liability on the decedent’s former spouse in certain circumstances. See e.g. Probate § 13550 (“upon the death of a married person, the surviving spouse is personally liable for the debts of the deceased spouse chargeable against the property described in Section 13551 to the extent provided in Section 13551”). Or, in certain circumstances, liability may premised on transfer of the decedent’s property. See e.g. Prob. Code § 13109(a) (transferee is personally liable, to the extent provided in this section for the unsecured debts of the decedent).

Disposition

The Court finds and orders as follows:

1. The Motion to Substitute Successor-in-Interest as Defendant is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

15. 9:00 AM CASE NUMBER: N23-1456

CASE NAME: CURIA GLOBAL, INC. v. BRYOLOGYX, INC.

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE RICHARD H. TILGHMAN IV**

FILED BY: CURIA GLOBAL, INC.

TENTATIVE RULING:

On October 7, 2025, petitioner Curia Global, Inc. (“Petitioner”) filed an application for leave for attorney Richard H. Tilghman (“Counsel”) to appear on its behalf *pro hac vice* in this matter (the “Pro Hac Vice Application”). The Pro Hac Vice Application was set for hearing on February 23, 2026. The motion is unopposed.

Analysis

Rule 9.40 of the California Rules of Court (“CRC”) sets forth the matters that must be addressed in an application to appear *pro hac vice* in a particular cause pending before the Court:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

CRC 9.40 (d).

Counsel’s supporting declaration sets forth Counsel’s background and addresses each of the